

25SMCV05720 25SMCV05720

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Case Number: 25SMCV05720 Hearing Date: July 28, 2026 Dept: M

CASE NAME: Hale, v. BMW of North
America, LLC

CASE NO.: 25SMCV05720

MOTION: Demurrer to the Answer

HEARING DATE: 7/28/2026

LEGAL STANDARD

In

addition to denials, the answer should contain any and all affirmative defenses or objections to the complaint that defendant may have, and that would otherwise not be in issue under a simple denial. Such defenses or objections are “new matter.” (CCP § 431.30(b).) Generally, a defendant bears the burden of proving “new matter” and, as such, must be specifically pleaded in the answer. (California Academy of Sciences v. County of Fresno (1987) 192 Cal.App.3d 1436, 1442.) “The phrase ‘new matter’ refers to something relied on by a defendant which is not put in issue by the plaintiff.” (Walsh v. West Valley Mission Community College District (1998) 66 Cal.App.4th 1532, 1546.) Where the answer sets forth facts showing some essential allegation of the complaint is not true, such facts are not new matter but are denials. (Ibid.)

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same pleading of “ultimate facts” rather than evidentiary matter or legal conclusions is required as in pleading a complaint. The answer must aver facts as carefully and with as much detail as the facts which constitute the cause of

action and which are alleged in the complaint. (FPI Development, Inc. v. Nakashimi (1991) 231 Cal.App.3d 367, 384 [defenses must be pleaded in the nature of “yes, the allegations [of the complaint] are true, but . . .”].) The various affirmative defenses must be separately stated and must refer to the causes of action to which they relate “in a manner by which they may be intelligently distinguished.” (CCP § 431.30(g).)

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allegations of the pleading must be regarded as true. (South Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 730.) All that is necessary against a demurrer or motion to strike is that, upon consideration of all of the facts stated, it appears that the party whose pleading is attacked by such a demurrer is entitled to any relief at the hands of the court against his adversary. (Id. at 733.) When considering a challenge to an answer, the “determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer.” (Ibid.) “[T]he demurrer to the answer admits all issuable facts pleaded therein and eliminates all allegations of the complaint denied by the answer.” (Ibid.)

“Liberality

in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on pleader to show in what manner they can amend the pleading, and how that amendment will change the legal effect of the pleading. (Id.)

ANALYSIS

Plaintiff Casey

Hale demurs to portions of Defendant BMW OF North America, LLC’s Answer. Plaintiff asserts that: (1) the First, Second, Tenth, Eleventh, Fourteenth, Fifteenth, Sixteenth, and Seventeenth Affirmative Defenses fail to state facts sufficient to constitute a defense; (2) the Eighth Affirmative Defense violates CCP § 458; and (3) the Seventeenth Affirmative Defense is improper under CCP §§ 430.20(a), 431.30(b).

First Affirmative Defense

This defense states "Plaintiff's Complaint, and each cause of action therein, fails to state facts sufficient to constitute a cause of action against Defendant." This statement is not a recognized affirmative defense. It alleges no new matter sufficient to constitute a defense. Notably, an objection that the pleading does not state facts sufficient to constitute a cause of action cannot be waived. (CCP § 430.80.)

Accordingly, the demurrer is SUSTAINED without leave as to this purported defense.

Second Affirmative Defense

This defense states "Defendant is informed and believes and thereon alleges that Plaintiff's alleged damages, if any, are the result, in whole or in part, of Plaintiff's failure to exercise reasonable care to reduce or mitigate damages."

A plaintiff who suffers damage as a result of either a breach of contract or a tort has a duty to take reasonable steps to mitigate those damages and will not be able to recover for any losses that could have been thus avoided. (Shaffer v. Debbas (1993) 17 Cal.App.4th 33, 41.)

"Generally, '[a] person injured by the wrongful act of another is bound to reasonable care and diligence to avoid loss or minimize the resulting damages and cannot recover for losses which might have been prevented by reasonable efforts and expenditures on his part.'" (Hunter v. Croysdill (1959) 169 Cal.App.2d 307, 318.) This rule of mitigation of damages comes into play when the event producing injury or damage has already occurred and it then has become the obligation of the injured or damaged party to avoid continuing or enhanced damages through reasonable efforts. (Valle de Oro Bank v. Gamboa (1994) 26 Cal.App.4th 1686, 1691.)

The Answer alleges that Plaintiff failed to exercise reasonable care to reduce or mitigate damages. Taken together with the admissions/denials of Plaintiff's complaint, the Answer states the requisite ultimate facts of a mitigation defense. No greater specificity is required at the pleading stage for an answer.

Accordingly, the demurrer is OVERRULED as to this defense.

Eighth Affirmative Defense

This

defense raises the statute of limitations. It states: "Defendant is informed and believes and thereon alleges that the Complaint, and each cause of action thereof, is barred by the application of the statute of limitations set forth in California Code of Civil Procedure sections 337(1), 337(3), 338(a), 339(a), 339(3), 340(a), 343, Commercial Code section 2725 and/or any other statute of limitations applicable to the present action."

CCP section 458 states: "In pleading the Statute of Limitations it is not necessary to state the facts showing the defense, but it may be stated generally that the cause of action is barred by the provisions of Section _____ (giving the number of the section and subdivision thereof, if it is so divided, relied upon) of The Code of Civil Procedure; and if such allegation be controverted, the party pleading must establish, on the trial, the facts showing that the cause of action is so barred."

The defense complies with CCP section 458. The defense appropriately cites potentially applicable statutes of limitations, including sections 338(a) [liability created by statute], 339(3) [rescission of contract], 340(a) [statute for a penalty or forfeiture], and 343 [catch-all]. CCP section 337 and Comm. Code section 2725 may also apply, though Defendant fails to cite the applicable subdivisions. (There are no subdivisions (1) or (3) for CCP section 337, and no subdivision is cited for Comm. Code section 2725.)

Accordingly, the demurrer is OVERRULED as to this defense.

Tenth

Affirmative Defense

This defense states "Defendant, in response to the Complaint and each of its causes of action, states that Plaintiff's claims for consequential damages are specifically barred by the terms of the warranty in question and applicable law." This defense does not raise a new matter sufficient to constitute a defense. Rather, it simply attacks an element of Plaintiff's prima facie case.

Accordingly, the demurrer is SUSTAINED without leave as to this purported defense.

Eleventh

Affirmative Defense

This defense states "Plaintiff and Defendant were not in privity of contract wherefore Plaintiff may not obtain the requested relief from Defendant." This defense does not raise a new matter sufficient to constitute a defense. Rather, it simply attacks an element of Plaintiff's prima facie case.

Accordingly, the demurrer is SUSTAINED without leave as to this purported defense.

Fourteenth Affirmative

Defense

This defense states "Plaintiff's Complaint fails to state sufficient facts to warrant the imposition of civil penalties because it was believed that replacement or repurchase of the subject vehicle was not appropriate under the circumstances then known." This defense does not raise a new matter sufficient to constitute a defense. Rather, it simply attacks an element of Plaintiff's prima facie case.

Accordingly, the demurrer is SUSTAINED without leave as to this purported defense.

Fifteenth Affirmative Defense

This defense states "The repair process to Plaintiff's vehicle was appropriate and proper and is believed to have been done with the consent of the Plaintiff." This defense does not raise a new matter sufficient to constitute a defense. Rather, it simply attacks an element of Plaintiff's prima facie case.

Accordingly, the demurrer is SUSTAINED without leave as to this purported defense.

Sixteenth Affirmative Defense

This defense states "Each and every cause of action based upon breach of implied warranty is barred by virtue of Civil Code § 1791.1(c)." This defense does not raise a new matter sufficient to constitute a defense. Rather, it simply attacks an element of Plaintiff's prima facie case.

Accordingly, the demurrer is SUSTAINED without leave as to this purported defense.

Seventeenth Affirmative Defense

This defense states "Defendant presently has insufficient knowledge or information on which to form a belief as to whether it may have additional, as yet unstated, defenses available. Defendant reserves the right to assert additional defenses in the event that they would be appropriate." This reservation of rights does not raise a new matter sufficient to constitute a defense.

Accordingly, the demurrer is SUSTAINED without leave as to this purported defense.